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RETURN TO:
H. CLYDE HOBBY, P.A.
6917 COUNTY ROAD 54
NEW PORT RICHEY, FLORIDA 34653

ORIGINAL

90-92

POTABLE WATER, RECLAIMED WATER & WASTEWATER TREATMENT SERVICE AGREEMENT

THIS AGREEMENT made and entered into this 21 day of [illegible], 1989, by and among PASCO COUNTY, a political subdivision of the State of Florida, acting by and through its Board of County Commissioners, the governing body thereof, hereinafter referred to as "the County", TROUT CREEK PROPERTIES, INC., a corporation authorized to conduct business within the State of Florida, hereinafter referred to as "the Owner", and BOOTHE LAND CORPORATION, a corporation incorporated in and authorized to conduct business within the State of Florida, hereinafter referred to as "BLC".

W I T N E S S E T H:

WHEREAS, the Owner owns the property within the County known as Trout Creek (except those portions of Trout Creek consisting of the existing potable water treatment site described in Exhibit "A" attached hereto, hereinafter referred to as the "Water Site", the existing wastewater treatment site described in Exhibit "B" attached hereto, hereinafter referred to as the "Wastewater Site", the spray irrigation site described in Exhibit "C" attached hereto, hereinafter referred to as the "Spray Irrigation Site", and all of the water and wastewater lines, and related easements, serving those sites, all of which are owned by BLC), consisting of approximately 1700 acres and more particularly described in Exhibit "D" attached hereto, hereinafter referred to as "Trout Creek"; and,

WHEREAS, BLC owns (i) the Water Site, the Wastewater Site, the Spray Irrigation Site and the related water and sewer lines and easements, which are a part of Trout Creek, and (ii) a portion of the property contiguous with Trout Creek within the County known as Tanglewood Village, Phases I and II at Williamsburg West, hereinafter referred to as "Tanglewood Village", including 45 lots within Tanglewood Village to which potable water and wastewater treatment lines have been installed but not connected; and,

WHEREAS, the Owner has heretofore granted the County a water and sewer easement for the purpose of facilitating the County's provision of potable water and wastewater services to Tanglewood Village and Trout Creek, and the County has intalled in the property subject to the easement

a 10-inch potable water main from the Water Site to County Road 581 and has installed a 12 inch wastewater force main and related pumping stations from County Road 581 and Williamsburg Drive intersection to Wesley Chapel Subregional Wastewater Treatment Plant; and,

WHEREAS, pursuant to that certain unrecorded Agreement of Dedication dated April 13, 1982, hereinafter referred to as the "Dedication Agreement", between the County and International Community Corporation-Tampa, hereinafter referred to as "ICC-T", ICC-T agreed to construct certain water supply and wastewater treatment facilities located on the Water Site and the Wastewater Site in connection with the development of Tanglewood Village and Trout Creek (Tanglewood Village and Trout Creek sometimes hereinafter referred to collectively as the "Property") and to dedicate those facilities to the County upon their completion, all as more particularly set forth in the Dedication Agreement; and,

WHEREAS, BLC is the successor to all of the right, title and interest of ICC-T in and to the Water Site and the Wastewater Site, together with all buildings, improvements, structures and facilities now situated on those sites and BLC intends to convey the Water Site and Wastewater Site, including related improvements thereon and the water and wastewater lines, including related easements, to the County; and,

WHEREAS, the County, the Owner and BLC wish to terminate the Dedication Agreement, transfer the Water Site, Wastewater Site, including related improvements thereon and the water and wastewater lines to the County and to enter into this utility service agreement governing the provision by the County of potable water, reclaimed water and wastewater treatment services to the Property, it being the intention of the parties that (i) the covenants and agreements contained herein shall attach to and run with the land within Trout Creek and Tanglewood Village, and each portion thereof as may be transferred by the Owner or BLC, (ii) all references herein to the Owner or to BLC shall include the successors(s) in interest of each, and (iii) upon transfer by the Owner or BLC of its interest in any portion of the Property, all obligations hereunder with respect to that portion of the Property shall become the obligations of the successor(s) in interest, and the Owner or BLC, as the case may be, shall be relieved of such obligations, except those obligations relating to the conveyance of the utility system to the County.

O.R. 1865 PG 1498

NOW, THEREFORE, in consideration of the premises, which shall be deemed an integral part of this Agreement, and of the mutual covenants and conditions set forth in this Agreement, the County, the Owner and BLC intending to be legally bound thereby, agree as follows:

I. Scope of Project

The County shall provide such potable water, reclaimed water, and wastewater treatment services as shall be required by Tanglewood Village and by Trout Creek as Trout Creek is developed in accordance with the Master Planned Unit Development approved June 23, 1981 and the Development Order, as amended from time to time, hereinafter referred to as the "MPUD". The operation, design, and expansion of the County's wastewater treatment facilities and water production facilities shall be accomplished in such a manner so as to adequately meet the service demands of the Property. The Owner contemplates the construction by others of approximately 4,300 residential units, at a rate of approximately 300 to 400 units per year, and of commercial and other buildings and facilities in Trout Creek in accordance with the MPUD. The subsequent expansions of the County's wastewater treatment plants shall be scheduled to correspond with the projected needs of the Property and other developments in the area, as more specifically set forth herein. The County may provide reclaimed water service suitable for irrigational purposes or other purposes allowable under applicable law.

II. Definitions

As used in this Agreement, the following terms shall have the following meanings:

"Collection system" shall mean all facilities required to transport sewage to a treatment plant for treatment and effluent disposal, including gravity sanitary sewers, interceptors, force mains and pumping stations;

"Collection system permit" shall mean a permit issued by the Florida Department of Environmental Regulation prior to the construction of a sewage collection system;

"Commitment fee" shall mean the fees established by the County for a service commitment for use of the County's sewer and water system in accordance with the regulations adopted by the County;

"Impact fee" shall mean the fees established by the County for use of the County's sewer or water system, paid by a developer or customer to

the County at the time the County approves a building permit or as otherwise required by the County and held in a special fund or funds to be utilized in accordance with regulations adopted by the County establishing such fees;

"Meter connection fee" shall mean the fee established by the County for the installation of water meters by County employees or agents;

"Potable water" shall mean water safe and satisfactory for drinking, culinary and domestic purposes meeting all applicable quality standards at the time of use; and,

"Reclaimed water" shall mean water that has received at least secondary treatment and is reused after flowing out of the County's Wesley Chapel Subregional Wastewater Treatment Plant, the existing wastewater treatment plant or other County plant.

III. Obligations Relating to the Wastewater Service

1. Wastewater Treatment Services and Service Commitment Fees. The County hereby agrees to provide wastewater treatment services of sufficient capacity, subject to the conditions and limitations set forth herein, for Tanglewood Village and for Trout Creek, as it is developed, in accordance with the MPUD. The County agrees to provide wastewater impact fee credits for the 45 remaining single-family units to be constructed in Tanglewood Village and the first 463 single-family units or equivalent residential units constructed in Trout Creek, unless the wastewater treatment plant is incapable of providing adequate treatment and disposal services at its design capacity of 175,000 gallons per day, in which case the number of units receiving credits will be adjusted downwards proportionately to the actual treatment capacity as determined by the County. With respect to any additional units, the Owner or its successor(s) in interest shall be required to pay a wastewater service commitment in accordance with the requirements of the County's regulations prior to County approval of the collection system permits for the system to service those additional units. The commitment fee will be credited, on a unit by unit basis, against payment of the applicable wastewater impact fees as they become due. The Owner or its successor(s) in interest will be responsible for payment of all commitment fees and impact fees for all units other than the units referenced above.

2. Connection to Wastewater Treatment System. The Owner or its successor(s) in interest shall be responsible for installing or constructing

the wastewater lines, collection systems, force mains and lift stations necessary to connect the wastewater system within the Property to the County's wastewater collection system. Owner shall also be responsible upon request from the County for installing and constructing the necessary connection to the County's system at the Northwood Pumping Station which is on the west side of County Road 581 at the Williamsburg Drive intersection or other location mutually acceptable to the Owner and County in order to transport raw wastewater to the Wesley Chapel Facility at such time as the County makes the decision to abandoned the existing wastewater treatment plant, which abandonment shall be completed no later than twelve (12) months following the County's acceptance of the construction at the request of the County. However, the County agrees to pay for any oversizing of the collection system requested by the County in accordance with the terms and conditions of this Agreement.

3. Charges for Wastewater Treatment Services. The Owner or its successor(s) in interest shall pay the County such fees for wastewater treatment services, including those day-to-day operations and maintenance activities provided by the County to treat wastewater, as from time to time are established by the Board of County Commissioners. The County will remain solely responsible to provide all wastewater treatment in accordance with all applicable local, regional, state and federal laws and regulations as they are established and imposed from time to time.

IV. Obligations Relating to Potable Water and Reclaimed Water Services.

1. Water Services. The County hereby agrees to provide potable water service and reclaimed water service of sufficient capacity and quality, subject to the conditions and limitations set forth herein, for Tanglewood Village and for Trout Creek, as it is developed, in accordance with the MPUD. Potable water service shall be provided by the County from existing water supply lines and/or from additional water production sources and distribution systems and subject only to the conditions set forth herein. In addition, the County agrees, subject to availability, to provide reclaimed water from its wastewater treatment plant or plants in order that the Owner or its successor(s) in interest may utilize the same within Trout Creek as required herein for irrigation common areas, recreational areas or other areas, or other uses as required by ordinance or conditions of development approval.

2. Water Commitment Fees. The County agrees to provide water impact fee credits for the 45 remaining single-family units to be constructed in Tanglewood Village and the first 463 single-family units or equivalent residential units constructed in Trout Creek. With respect to any additional units, the Owner or its successor(s) in interest shall be required to pay a water service commitment fee as required by County regulations prior to County approval of the collection system or water distribution system permits for those additional units. The Commitment fee will be credited, on a unit by unit basis, against payment of the applicable water impact fees as they become due. The Owner or its successor(s) in interest will be responsible for payment of all commitment fees and impact fees for all units other than the units referenced above.

3. Connections to Potable and Reclaimed Water Systems. The Owner or its successor(s) in interest shall be responsible for installing the water lines necessary to connect the potable water distribution system for Trout Creek and Tanglewood Village to the County's existing potable water system and to connect the reclaimed water system for Trout Creek to the County's existing effluent distribution system. The points of connection for potable water, unless otherwise mutually agreed, shall be the on-site ten (10) inch main located at the Williamsburg Water Plant and the off-site twenty-four (24) inch main along the west side of C.R. 581 at the planned intersection of Trout Creek Boulevard, approximately 0.34 mile north of the Hillsborough County line. The point of connection for the reclaimed water system, unless otherwise mutually agreed, shall be the twelve (12) inch main at the Northwood Pumping Station, which is on the west side of C.R. 581 at the intersection of Williamsburg Drive.

4. Charges for Water Services. The Owner or its successor(s) in interest shall pay the County such user fees for potable water and reclaimed water actually used as are established from time to time by the Board of County Commissioners in accordance with the County's utility regulations. In addition, the Owner or its successor(s) in interest shall pay all reasonable meter connection fees which may be established by the Board of County Commissioners for the provision of potable water service. All potable and reclaimed water to be provided by the County pursuant to this Agreement shall be so provided in accordance with all applicable local, state, and

federal laws and regulations as they are established and imposed from time to time.

V. Obligations Relating to Both Water and Wastewater Services

1. Within Trout Creek, the Owner or its successor(s) in interest will provide or obtain, all necessary easements and permits, and construct and install all water and wastewater lines, necessary to provide the Property with potable water, reclaimed water as required by applicable regulations, and wastewater service in accordance with the MPUD, and will bear all costs and expenses thereof, including engineering fees, legal fees, labor and materials. Installation of lines within Trout Creek shall not be commenced until plans and specifications therefore have been submitted to and approved, in writing, by the County and other appropriate agencies having jurisdiction.

2. The Owner or its successor(s) in interest shall bear all costs and expenses, including engineering fees, legal fees, permitting fees, labor and materials, incurred in the installation of the connecting water and wastewater lines referred to in paragraph 2 of Article III and paragraph 3 of Article IV hereof. Installation of these connecting lines shall not be commenced until plans and specifications therefore have been submitted to and approved, in writing, by the County and other appropriate agencies having jurisdiction. Such connecting water and wastewater lines shall be located in existing County easements or rights-of-way or in easements or rights-of-way acquired by the Owner or its successor(s) in interest at the expense, if any, of the Owner. The County shall cooperate with the Owner or its successor(s) in interest in the installation of said lines and shall not unreasonably withhold its approval of the construction of the lines in County easements or rights-of-way.

3. Upon completion of construction of the water and wastewater lines necessary for provision of water and wastewater service to the Property, or any portion thereof, said water and wastewater lines shall be inspected by the County and certified by the engineers retained by the Owner or its successor(s) in interest. Upon determination by the County that said lines have been properly installed in accordance with approved plans and specifications and applicable laws, rules and regulations, the County shall given written notice of its acceptance of said lines to the Owner or its successor(s) in interest, which notice shall be in recordable form (the"Notice

of Acceptance"), and the lines will be connected to and become a part of the County's potable water, reclaimed water, and wastewater systems. Water and wastewater service shall thereafter be provided to said lines by the County, provided all obligations imposed upon the Owner or its successor(s) in interest under the terms of this Agreement, relevant laws, rules, and regulations have been satisfied.

4. At such time as the water and wastewater lines constructed for provision of services to the Property, or any portion thereof, have been accepted by the County and are connected to and become a part of the County's potable water, reclaimed water or wastewater systems, all such lines and all permits, engineering drawings, and other assets directly related to such lines and their construction owned by the Owner or its successor(s) in interest shall hence forth be deemed to be owned by the County, and title and ownership shall, upon recordation of the Notice of Acceptance, vest in the County without the necessity of any separate instrument of conveyance or separate instrument of assignment or transfer, and the County shall have the full privilege of all of the easements and rights-of-way occupied by such lines. The Owner, or its successor(s) in interest shall confirm or verify such ownership, conveyance, and title, upon request by the County, by the execution and delivery of appropriate bills of sale, transfers, assignments, or other instruments of conveyance.

5. After ownership and title to any portion of the water and wastewater lines within the Property are vested in the County as set forth above, all responsibility for operation, repair, reconstruction and maintenance of such part or portion as have been installed in appropriate easements or rights-of-way shall be borne by the County, provided that the County shall not, by this Agreement, waive or otherwise affect or diminish its rights and remedies under any maintenance bond, performance bond, letter of credit, or other guarantee of performance regarding such lines which has been provided to the County in accordance with the requirements of its subdivision or other applicable development ordinance. Furthermore, the Owner or its successor(s) in interest shall post a one (1) year maintenance bond or a letter of credit issued by as national bank in an amount of fifteen percent (15%) of the total cost of such water and wastewater lines. It is further agreed that the Owner or its successor(s) in interest shall assign to the County, for the use and benefits of the County and its

successors and assigns, each and every construction warranty obtained by the Owner or its successor(s) in interest in connection with the installation of said lines.

6. The Trout Creek Development Master Sewer, Master Reclaimed Water, and Master Water Utilities Report indicated that no oversizing will be required; however, should the County desire oversizing of water or wastewater lines, the Owner or its successor(s) in interest shall increase the capacity or size of potable water, reclaimed water, or wastewater lines, as appropriate, either on-site or off-site, beyond the capacity or size required for provision of service to the Property. Upon completion of construction the County shall reimburse the Owner or its successor(s) in interest in an amount equal to the costs of oversizing to provide the required excess capacity, the payment to be made, at the option of the Owner or its successor(s) in interest, in cash or by credit against impact fees. The cost of the excess capacity shall be determined as follows:

(i) The Owner or its successor(s) in interest shall secure at least three (3) competitive bids for construction of the lines to be oversized, with bid prices to be stated alternatively (A) for lines sized to serve only the requirements of the Property and (B) for lines of the size requested by the County; and,

(ii) The amount reimbursable to the Owner or its successor(s) in interest shall be the difference in cost between the lowest responsible competitive bids, as approved by the County and the Owner or its successor(s) in interest, for the required lines and for the oversized lines. Reimbursement by the County shall be based upon paid invoices submitted by the Owner or its successor(s) in interest which specify the cost of the work performed in connection with the oversizing request, and other documentation and certifications as outlined in Exhibit "E" hereto.

7. Within thirty (30) days of the effective date of this Agreement, BLC shall deliver to the County a warranty deed for the Water Site, evidence of lien satisfaction for the Water Site, and Bills of Sale hereto for the water treatment plant, well water lines, wastewater lines and associated equipment and personal property located in or on the Water Site, the wastewater treatment plant and associated equipment and personal property located in or on the Wastewater Site and the equipment and personal property located in or on the Spray Irrigation Site. Such Bills of Sale shall include all

equipment, structures, pumps, motors, materials, products and all other items in or on the real property which are used by, resulting from, or arising out of the operation and/or occupancy by the County. BLC shall also assign appropriate easements for all water and wastewater lines. At the time of delivery of the documents referenced above, BLC shall also deliver to the County a warranty deed for the Wastewater Site and Spray Irrigation Site; such warranty deed to provide that upon the County's abandonment of the existing wastewater treatment plant, title to the Wastewater Site and Spray Irrigation Site shall revert to BLC unless BLC shall, not later than sixty (60) days after the County's abandonment is complete, notify the County in writing that BLC desires not to retake fee simple title to the Wastewater Site and/or Spray Irrigation Site, which decision shall be at the sole discretion of BLC. During said sixty (60) day period, BLC shall have the right to investigate and examine the sites as it sees fit. If requested by BLC, the County shall execute and record a Notice of Abandonment. Within six (6) months of abandonment in the event Owner elects to retake title to the property, it shall be the sole responsibility of the Owner, all at the sole cost and expense of the Owner to dismantle and remove all plant and equipment, except that salvaged or removed by the County, contained on the Wastewater Site and the Spray Irrigation Site and associated with the County's operation or occupancy.

Neither BLC, the Owner nor their successor(s) in interest shall engage in the operation of potable water, reclaimed water or wastewater services within or serving the Property.

VI. Conditions Precedent

The obligations of the County to provide water, wastewater and reclaimed water services as set forth herein shall be subject to all requirements imposed upon the County water, wastewater and reclaimed water systems by law including, but not limited to, the issuance of all required permits and approvals by the Florida Department of Environmental Regulation, the Southwest Florida Water Management District and other regulatory agencies having jurisdiction including, but not limited to, the Federal Housing Administration and the Veterans Administration, provided, however, that the County agrees to use its best efforts to obtain and comply with all such permits.

VII. Miscellaneous

1. Any notice, statement, demand, or other communication required or permitted to be delivered or served or given by either party hereto to the other shall be delivered or served or given if mailed in any general or branch United States Post Office enclosed in a registered or certified envelope addressed to the respective parties as follows:

County: Utilities Service Branch
Pasco County Government Complex
7536 State Street
New Port Richey, Florida 34654

Copy to: John G. Gallagher, County Administrator
Pasco County Government Center
7530 Little Road, Room 203
New Port Richey, Florida 34654

Owner: Trout Creek Properties, INc.
100 Bush Street
Suite 1700
San Francisco, California 94104
ATTN: John M. Price

Copy to: Shimberg-Cross Company
Ashley Tower
100 South Ashley Drive
Suite 1900
Tampa, Florida 33602
ATTN: Glen Cross

BLC: Boothe Land Corporation
100 Bush Street
Suite 1700
San Francisco, CA 94104
ATTN: Stuart B. Aronoff

Notwithstanding the foregoing, each party shall be entitled to change each address by notice given pursuant to this paragraph.

2. Covenants and agreements contained herein shall run with, and benefit and burden the lands, or applicable portions thereof, within, and the Owners of, Tanglewood Village and Trout Creek or applicable portions thereof, and shall inure to the benefit of and be binding upon the County, the Owner and their respective successors and assigns.

3. This Agreement shall be subject to the existing requirements of the County's Sewer Use Ordinance No. 87-10 and the County's Water Use Ordinance No. 87-09, and the same are incorporated herein by reference. In the event of any conflict between the terms of this Agreement and the existing provisions of said ordinances, the provisions of the ordinances shall control.

4. In the event the performance of this Agreement by the County, is prevented or interrupted by consequence of an act of God, or of the public enemy, or national emergency, allocation or other governmental

restrictions upon the use or availability of labor or materials, rationing, civil insurrection, riot, racial or civil rights disorder or demonstration, strike, embargo, flood, tidal wave, fire, explosion, bomb detonation, nuclear fallout, windstorm, hurricane, sinkholes, earthquake, or other casualty or disaster or catastrophe, governmental rules or acts or orders or restrictions or regulations or requirements, acts or actions of any government, except the County in the case of the County's non-performance, or public or governmental authority or commission or board or agency or agent or official or officer, or judgment or a restraining order or injunction of any court, the County, BLC, the Owner or their successor(s) in interest, as the case may be, shall not be liable for such non-performance, and the time of performance shall be extended for such time period that such party is diligently attempting to perform.

5. The County, the Owner and BLC hereby covenant and agree that upon the conveyance of the Water Site, Spray Irrigation Site and Wastewater Site as required herein the Dedication Agreement is hereby terminated as of the date hereof and the terms of the Dedication Agreement are hereafter null and void and of no further force and effect.

IN WITNESS WHEREOF, the parties hereto have hereunto placed their respective hands and seals this 21 day of December, 1989.

[SEAL]

ATTEST:

By _____
Jed Pittman
Clerk

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

By _____
Allan G. Safranek, Jr.
Chairman

[SEAL]

ATTEST:

By _____

TROUT CREEK PROPERTIES, INC.

By _____

[SEAL]

ATTEST:

BOOTHE LAND CORPORATION

By _____ By Paul Wallace

APPROVED AS TO LEGAL FORM AND CONTENT
Office of the County Attorney

By _____
Attorney

O.R. 1865 PG 1509

STATE OF FLORIDA)
COUNTY OF PASCO)

The foregoing instrument was sworn to and acknowledged before me this __ day of _____, by Allan G. Safranek, Jr. as Chairman of the Board of County Commissioners of Pasco County, Florida.

[SEAL]

_____
Notary Public
My Commission Expires:

STATE OF ~~CALIFORNIA~~ FLORIDA)
~~CITY AND~~ COUNTY OF ~~SAN FRANCISCO~~ PASCO)

The foregoing instrument was sworn to and acknowledged before me this 14 day of November 19[illegible], by John M. Price, as Vice President of Trout Creek Properties, Inc., a Delaware corporation.

[SEAL]

Johnna Willard
Notary Public
My Commission Expires:

STATE OF ~~CALIFORNIA~~ FLORIDA)
~~CITY AND~~ COUNTY OF ~~SAN FRANCISCO~~ PASCO)

The foregoing instrument was worn to and acknowledged before me this 14 day of November 19[illegible] by ~~Stuart B. Arenoff~~ Paul Woodberry, as Vice President of Boothe Land Corporation, a Florida Corporation.

[SEAL]

Johnna Willard
Notary Public
My Commission Expires:

Part of Section 31, Township 26 South, Range 20 East, Pasco County, Florida, described as follows:

Commence at the Northeast corner of said Section 31; thence S.89°31'54"W., along the North line thereof, 1106.68 feet to a point on the Easterly boundary line of Tanglewood Village - Phase 2, according to map or plat thereof, as recorded in Plat Book 20, Pages 134, 135 and 136, Public Records of Pasco County, Florida; thence along said Easterly boundary line of said Easterly boundary line of said Tanglewood Village - Phase 2 the following three (3) courses and distances; S.20°28'05"E., 585.46 feet; thence S.02°05'02"E., 547.24 feet; thence S.61°37'21"W., 425.00 feet; thence S.28°22'39"E., 645.00 feet for the POINT OF BEGINNING; thence N.61°37'21"E., 544.95 feet; thence N.28°22'39"W., 106.20 feet; thence N.61°37'21"E., 200.00 feet; thence S.28°22'39"E., 200.00 feet; thence S.61°37'21"W., 200.00 feet; thence N.28°22'39"W., 73.80 feet; thence S.61°37'21"W., 544.95 feet; thence N.28°22'39"W., 20.00 feet to the POINT OF BEGINNING.

EXHIBIT "A"

That part of Section 31, Township 26 South, Range 20 East, Pasco County, Florida, described as follows:

Commencing at the Southeast corner of said Section 31; thence S.89°40'10"W., along the South line of said Section 31, a distance of 1183.04 feet; thence leaving said South line and running N.00°19'50"W., a distance of 60 feet to the POINT OF BEGINNING: thence N. 27°40'10"E., a distance of 705.66 feet; thence N.89°40'10"E., a distance of 478.97 feet; thence S.11°25'33"W., a distance of 636.41 feet; thence S.89°40'10"W., parallel to the South lines of said Section 31, a distance of 680.58 feet to the POINT OF BEGINNING.

EXHIBIT "B"

EXHIBIT "C"

TROUT CREEK
SPRAY IRRIGATION EASEMENT

That part of Section 32, Township 26 South, Range 20 East, Pasco County, Florida, described as follows:

Commencing at the Southwest corner of said Section 32; thence N.89°39'19"E., along the South line of said Section 32, a distance of 1555.17 feet; thence leaving said South line and running due North a distance of 786.98 feet to the Point of Beginning; thence continuing due North, a distance of 1292 feet; thence due East a distance of 835 feet; thence due South, a distance of 1292 feet; thence due West, a distance of 835 feet to the Point of Beginning.

All of Sections 31, 32 and 33, Township 26 South, Range 20 East, Pasco County, Florida.

LESS - The Southeast 1/4 of the Southeast 1/4 of said Section 33.

LESS - The Southwest 1/4 of the Southeast 1/4 of said Section 33.

LESS - The triangular Southwest 1/2 of the South 1/2 of the Northwest 1/4 of the Southeast 1/4 of said Section 33.

LESS - The East 1/2 of the Southeast 1/4 of the Southwest 1/4 of said Section 33.

LESS - The triangular Southeast 1/2 of the Southeast 1/4 of the Northeast 1/4 of the Southwest 1/4 of said Section 33.

LESS - TANGLEWOOD VILLAGE - PHASE 1 - AT WILLIAMSBURG WEST according to the map or plat thereof as recorded in Plat Book 20, Page 98 and 99 of the Public Records of Pasco County, Florida.

LESS - TANGLEWOOD VILLAGE - PHASE 2 - AT WILLIAMSBURG WEST according to the map or plat thereof as recorded in Plat Book 20, Page 134, 135 and 136 of the Public Records of Pasco County, Florida.

LESS - The right-of-way for County Road No. 581.

EXHIBIT "D"

EXHIBIT "E"

Prior to the reimbursement of fees that is to be paid to the developer per conditions as set forth herein, the below items shall be submitted to Pasco County Utilities as a complete package for verification of reimbursement that is to be paid:

1. Minimum of three (3) bids certified by the developer's Engineer of Record.
2. Certified bid tabulation sheet which reflects the difference in cost between the two (2) lower bids on a unit basis and costs for any oversizing showing pipe diameters and separate unit prices.
3. Certification by the Engineer of Record for project completion to the State Department of Environmental Regulation (FDER) and acceptance letter from the FDER.
4. Copies of all inspection reports, bacteriological analyses, and chemical analysis.
5. A one- (1-) year maintenance bond or letter of credit from the developer as required by ordinance for all on-site and off-site water, wastewater, and reclaimed water systems constructed by the developer.
6. Two (2) sealed, blue-line as-builts and one (1) set of as-built mylars.
7. Transfer of all regulatory permits to Pasco County, if appropriate.
8. Satisfaction of lien from the contractor who installed any and all sewer lines, water lines, and reuse lines to service the subject development.

Dec 18 5 47 PM '89
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O.R. 1865 PG 1515